

STANDING ORDER NO. 318/2010

Procedure for enquiry/investigation related to matters involving SC/STs etc.

There is a need for effective supervision over matters involving members of SC/ST Community. Reaching to logical conclusion in a time framed manner in every such enquiry/investigation is of paramount importance.

The Govt. has also paid special attention towards this aspect and had enacted special law such as Protection of Civil Rights Act 1955, the SCs and STs (POA) Act, 1989 and the SCs and STs (POA) Rules, 1995 framed for carrying the provision of the SCs and STs (POA) Act, 1989.

The police Headquarters, in the past had issued various instructions vide Circular No. 35/97 and 3/2000 issued vide this Hdqrs. endorsement No. 30136-258/C&T (AC-VII)/PHQ dated 22.9.1997 and 1651-700/C&T (AC-VII) PHQ dated 20.1.2000 respectively. It is well laid down practice that no investigation will be carried out by an officer below the rank of Asstt. Commissioner of Police pertaining to the Scheduled Castes/Scheduled Tribes (Prevention of Atrocities) Act, 1989. The matter has been examined afresh in view of the directions of Hon'ble High Court in Writ Petition (Crl.) No. 1338/2005 in the matter of Suresh Kumar Vs. State & others under Article 226 and it has been decided that even enquiries into a complaint of a petitioner shall not be looked into by an officer below the rank of Asstt. Commissioner of Police and if the commission of offence under SC/ST (Prevention of Atrocities) Act, 1989, or any other law is found to have been committed, the FIR will be registered and action taken in accordance with the law. In view of this, even an enquiry under the Act shall be conducted by an officer not below the rank of an ACP.

Role of Police Station Staff

The ACP and SHOs need to be briefed and they in turn should brief the IOs/Div./Beat staff to ensure implementation of measures of safeguarding the interests and prevention of atrocities on Scheduled Castes and Scheduled Tribes as per provisions made in the Protection of Civil Rights Act, 1955, the SCs and STs (POA) Act, 1989, and the SCs and STs (POA) Rules, 1995, framed for carrying the provision of the SCs and STs (POA) 1989. Briefly, the following action needs to be taken:-

- (1) Identification of the areas falling in the jurisdiction of a Police Station where atrocities may take place or where there is an apprehension of the reoccurrence of an offence under the Act.
- (2) The ACP/SHO should immediately visit the identified area and review the Law & Order situation there.

- (3) Whenever any information of an atrocity committed on the members of SCs/STs in the jurisdiction of a Police Station is received, the DCP shall immediately personally visit the place of occurrence to assess the extent of atrocity, loss of life, loss & damage to the property and submit his report forthwith to this Hdqrs. for onward transmission to Govt. of NCT of Delhi and National Commission for SCs/STs etc.
- (4) Besides registration of cases and taking action against accused where cases are made out, Protection should also be provided to the victims and the witnesses. The District Control Room should immediately inform the Crime Branch Control Room about the incident so that the Protection Cell in the Crime Branch is notified about the event.
- (5) Police patrolling shall be intensified in the effected areas.
- (6) As per Rule 7 of SCs and STs (Prevention of Atrocities) Rules, 1995, an offence committed under the SCs and STs (Prevention of Atrocities) Act, 1989, shall be investigated by a Police Officer not below the rank of ACP. The I.O. shall complete the investigation on top priority within 30 days and will submit a report on the results of investigation to the Add. C.P./ D.C.P of District/Unit who will in turn immediately forward the report alongwith his comments to this Hdqrs.
- (7) The other provisions made in the SCs and STs (Prevention of Atrocities) Rules, 1995, framed under the SCs/STs (Prevention of Atrocities) Act, 1989, may also be strictly followed.
- (8) While dealing the complaint of an individual regarding use of casteist remarks especially in Government Offices, the SHOs to deal with the complaints received from any Government Office submitted by an individual consisting the allegations punishable under SC/ST Act as per provisions of SC/ST Act.
- (9) As per rule 5 of the Act "(1) Every information relating to the commission of an offence under the Act, if given orally to an officer-in-charge of a police station shall be reduced to writing by him or under his direction, and be read over to the informant, and every such information, whether given in writing or reduced to writing as aforesaid, shall be signed by the persons given it, and the substance thereof shall be entered in a book to be maintained by that police station.
 - (2) A copy of the information as so recorded under sub rule (1) above shall be given forthwith, free of cost, to the informant.
 - (3) Any person aggrieved by a refusal on the part of an officer in charge of police station to record the information referred to sub-rule (1) may send substance of such information, in writing any by post, to the Superintendent of Police concerned who after investigation

either by himself or by a police officer not below the rank of Deputy Superintendent of Police (ACP in case of Delhi), shall make an order in writing to the officer in-charge of the concerned police station to enter the substance of that information to be entered in the book to be maintained by the police station”

Role of Addl. CP/DCsP of the District

As prescribed in rule 7 (1) of The Scheduled Caste and the Scheduled Tribes (Prevention of Atrocities) Rules, 1995, Cases registered under the above act have to be investigated by an officer of the rank of ACP. It is incumbent on the part of District Police Chief that orders to this effect are passed without any delay. However, before assigning investigation to an ACP, the caliber of the investigation officer as far as it relates to the investigation, taking into account his past experience, sense of ability and justice to perceive the implication of the case and investigate it along with right lines within the shortest possible time, should be well judged by the Addl.CP/DCP of the District. The investigating officer should be well versed with the provision of the Act, time limitation and other guidelines prescribed in the Act so that fair, justified and timed investigation should be carried out under intimation to all the concerned as per provision of the Act.

Rule 7 (2) further stipulates that the investigating officer so appointed under sub rule 7 (1) shall complete the investigation on top priority within thirty days and submit the report to the Superintendent of Police (Addl.CP/DCP of the district, in Delhi) who in turn will immediately forward the report to the Director General of Police of the State Govt. (Commissioner of Police in Delhi).

As per Rule 7 (3) The Home Secretary and Social Welfare Secretary to the State Government, Director of Prosecution, the officer-in-charge of Prosecution and the Director General of Police shall review by the end of every quarter the position of all investigation done by the investigating officer.

Role of Crime Branch

In pursuance of Rule-8 of SC/ST (POA) Act, 1989, a Protection Cell has already been constituted in the Crime Branch vide Circular No. 14/2007 issued vide No. 36204-303/C&T/AC-VII/PHQ dated 30.05.2007. The Protection Cell shall be responsible for:-

- i. Conducting survey of the identified area.
- ii. Maintaining public order and tranquility in the identified area.
- iii. Recommending to the State Government for deployment of special police force or establishment of special police post in the identified area.

- iv. Making investigation about the probable causes leading to an offence under the Act.
- v. Restoring the feeling of security amongst the members of the Scheduled Castes and the Scheduled Tribes.
- vi. Informing the Nodal Officer and Special Officer about the law and order situation in the identified area.
- vii. Making enquiries about the investigation and spot inspections conducted by various officers.
- viii. Making enquiries about the action taken by the DCP in the cases where an officer in-charge of the police station has refused to enter any information in a book to be maintained by the police station under sub-rule(3) of rule 5.
- ix. Making enquiries about the willful negligence by a public servant.
- x. Reviewing the position of cases registered under the Act.
- xi. Submitting a monthly report on or before 20th day of each subsequent month to the State Government Nodal Officer about the action taken/ proposed to be taken in respect of the above.

The purpose of this Cell is to ensure effectiveness and efficient handling of complaint/matters relating to atrocities committed on SC/ST. In case local police appear reluctant or indifferent for taking cognizance the aggrieved party may make a complaint to Crime Branch. The Spl. CP/Joint CP Crime may re-constitute the Protection Cell and all the members of the Cell be briefed about their duties, rules on the subject etc. for effective working of the Cell.

Role of PHQ

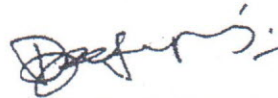
It is further decided that the Crime Branch shall be the nodal agency for monitoring the investigation of such cases. A committee comprising of Spl./Joint CP Crime, Joint Cs.P Ranges and Joint CP/PHQ shall review all such cases registered in a quarter of year in the first week immediately after the quarter which will be a regular exercise in quarter. The meetings, however, shall be held as per the date and time fixed by the Commissioner of Police.

The existing practice of sending monthly/quarterly returns to the Home Department/Department of Social Welfare etc., being done presently by the C&T Branch shall be personally supervised by the Joint CP/PHQ. Quarterly review by the Govt. of NCT of Delhi or by other agency as far as it relates to the investigation of the cases is concerned shall be attended by the Spl. CP/Admn. or by any officer directed by him. Other matters related to the welfare of the SC/STs etc. being looked by the Spl. CP/Vigilance shall remain under the preview of the Vigilance Branch.

Role of Joint CP/Training

The Joint Commissioner of Police, Training, Delhi may include a lecture on the Protection of Civil Rights Act, 1955 and SCs & STs (Prevention of Atrocities) Act, 1989 and the Protection of Civil Rights Rules, 1977 the SCs/STs (Prevention of Atrocities) Rules, 1955 in the training syllabus for various ranks of Delhi Police. Lectures on constitutional safe guards should be included in the training. Specific attention in particular, needs to be drawn to Article 17 on untouchability; Article 23 which prohibits trafficking in human beings and begar and other similar forms of forced labour; Article 24 on prohibition of employment of children below 14 years in factories, mines, etc., and Article 25(2)(b) throwing open Hindu Religious Institutions of a public character to all classes and section of Hindus, which mainly affect the persons belonging to SC and STs.

This Standing Oder supersedes all previous Standing Order, circulars, instructions and amendments issued in this regard.



(B. K. GUPTA)
Commissioner of Police:
Delhi.

O.B. NO.34/RB/PHQ Dated 7.6.2011

No. 4276-4526/Record Branch/PHQ, dated Delhi, the 7.6. 2011.

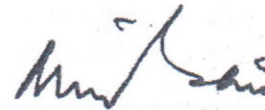
ADDEDNUM TO S..O.NO.318

**PROCEDURE FOR ENQUIRY/INVESTIGATION RELATED TO
MATTERS INVOLVING SCs/ STs ETC.**

The following para is incorporated after the 8th line at page No.5 in the Standing Order No.318/2011 issued vide PHQ's No.4276-4526/Record Branch/PHQ dated 7.6.2011:-

Role of Addl.CsP/DCsP of the District

"As per provisions contained under Rule 12 of the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Rule, 1995, a request shall be sent to the concerned revenue authority for granting relief or compensation to the victims (s)".



(BHIM SAIN BASSI)
Commissioner of Police
Delhi

O.B. No.17/HAR/PHQ 2014

No.3687-837/HAR/PHQ dated, Delhi, the 8/9/2014